

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1571
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 30, Arizona Revised Statutes, is amended by
3 adding chapter 9, to read:

4 CHAPTER 9

5 ELECTRIC UTILITY

6 ARTICLE 1. GENERAL PROVISIONS

7 30-1101. Monopoly utility with a defined customer base;
8 annual report; restriction; definition

9 A. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE MAY NOT DIRECTLY
10 OR INDIRECTLY PASS THROUGH ANY COSTS THAT ARE ASSOCIATED WITH MARKETING,
11 PARTNERSHIPS, ADVERTISING, COMMUNITY RELATIONS AND SPONSORSHIPS OR ANY
12 OTHER SIMILAR ACTIVITY TO A CUSTOMER.

13 B. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE SHALL ANNUALLY:

14 1. REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE
15 SPEAKER OF THE HOUSE OF REPRESENTATIVES ITS MARKETING, PARTNERSHIPS,
16 ADVERTISING, COMMUNITY RELATIONS AND SPONSORSHIPS OR ANY OTHER SIMILAR
17 ACTIVITY AND INCLUDE ANY EXPENSES THAT WERE DERIVED FROM PRIVATE MONIES.

18 2. POST THE REPORT ON ITS PUBLICLY ACCESSIBLE WEBSITE, WHICH SHALL
19 BE ACCESSIBLE FROM THE HOMEPAGE. THE MONOPOLY UTILITY WITH A DEFINED
20 CUSTOMER BASE SHALL KEEP ALL REPORTS AVAILABLE ONLINE.

21 C. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE SHALL ATTEST IN
22 THE ANNUAL REPORT THAT THE EXPENSES FOR MARKETING, PARTNERSHIPS,
23 ADVERTISING AND SPONSORSHIPS WERE NOT DIRECTLY OR INDIRECTLY PASSED
24 THROUGH TO CUSTOMERS.

25 D. FOR THE PURPOSES OF THIS SECTION, "MONOPOLY UTILITY WITH A
26 DEFINED CUSTOMER BASE" MEANS A UTILITY THAT HAS EXCLUSIVE AUTHORITY TO
27 PROVIDE UTILITY SERVICE WITHIN A DEFINED SERVICE AREA AND FOR WHICH
28 CUSTOMERS LOCATED IN THAT SERVICE AREA ARE REQUIRED TO RECEIVE UTILITY
29 SERVICE FROM THAT UTILITY.

30 Sec. 2. Title 40, chapter 2, article 1, Arizona Revised Statutes,
31 is amended by adding section 40-207, to read:

32 40-207. Monopoly utility with a defined customer base; rates;
33 annual report; definition

34 A. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE MAY NOT DIRECTLY
35 OR INDIRECTLY PASS THROUGH ANY COSTS THAT ARE ASSOCIATED WITH MARKETING,
36 PARTNERSHIPS, ADVERTISING, COMMUNITY RELATIONS AND SPONSORSHIPS OR ANY
37 OTHER SIMILAR ACTIVITY TO A CUSTOMER.

38 B. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE SHALL ANNUALLY:

39 1. REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE
40 SPEAKER OF THE HOUSE OF REPRESENTATIVES ITS MARKETING, PARTNERSHIPS,

1 ADVERTISING, COMMUNITY RELATIONS AND SPONSORSHIPS OR ANY OTHER SIMILAR
2 ACTIVITY AND INCLUDE ANY EXPENSES THAT WERE DERIVED FROM PRIVATE MONIES.

3 2. POST THE REPORT ON ITS PUBLICLY ACCESSIBLE WEBSITE, WHICH SHALL
4 BE ACCESSIBLE FROM THE HOMEPAGE. THE MONOPOLY UTILITY WITH A DEFINED
5 CUSTOMER BASE SHALL KEEP ALL REPORTS AVAILABLE ONLINE.

6 C. A MONOPOLY UTILITY WITH A DEFINED CUSTOMER BASE SHALL ATTEST IN
7 THE ANNUAL REPORT THAT THE EXPENSES FOR MARKETING, PARTNERSHIPS,
8 ADVERTISING AND SPONSORSHIPS WERE NOT DIRECTLY OR INDIRECTLY PASSED
9 THROUGH TO CUSTOMERS.

10 D. FOR THE PURPOSES OF THIS SECTION, "MONOPOLY UTILITY WITH A
11 DEFINED CUSTOMER BASE" MEANS A UTILITY THAT HAS EXCLUSIVE AUTHORITY TO
12 PROVIDE UTILITY SERVICE WITHIN A DEFINED SERVICE AREA AND FOR WHICH
13 CUSTOMERS LOCATED IN THAT SERVICE AREA ARE REQUIRED TO RECEIVE UTILITY
14 SERVICE FROM THAT UTILITY."

15 Amend title to conform

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